

Franciscus Dylan Rosario,
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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

**DECLARATION OF
FRANCISCUS DYLAN ROSARIO**

**AUTHORITY TO FILE AND AUTHORITY OF THE CLERK TO AC-
CEPT**

1. Plaintiff appears in propria persona under Code of Civil Procedure section 1014 and Cal. Const. art. I, sections 3 and 16.
2. This paper is filed under Code of Civil Procedure section 2015.5; California Rules of Court, rule 3.1306; and Code of Civil Procedure section 425.16, subdivision (b)(2).
3. The Clerk's authority to accept this paper is under Government Code sections 68150 and 69845 and California Rules of Court, rules 2.100 through 2.111, 2.118, 2.119, 2.256, and 2.257. Rejection is limited to the enumerated technical grounds in California Rules of Court, rules 2.118 and 2.119; this paper does not present any of those grounds.
4. The Court's authority to consider the substance is under Evidence Code sections 1400 to 1402

(authentication); and Evidence Code section 452, subdivision (d).

5. This paper is timely filed for the June 24, 2026 hearing under Code of Civil Procedure section 1005, subdivision (b), and Department 302's May 13, 2026 scheduling order.

I, Franciscus Dylan Rosario, declare under penalty of perjury under the laws of the State of California:

1. I am the Plaintiff in *Rosario v. CSAA Insurance Exchange, et al.* (CGC-25-631802), San Francisco Superior Court, Dept. 302, Hon. Joseph M. Quinn. I am also the Plaintiff in the related action *Rosario v. Abdelhalim, et al.* (CGC-25-631801), San Francisco Superior Court, Dept. 301, Hon. Christine Van Aken. The two actions are related under California Rules of Court, rule 3.300, by the parties' notices of related case and by the defense's own footnote references in the 802 papers to the parent appeal *Rosario v. Abdelhalim*, Court of Appeal Case No. A173827. I make this declaration of my own personal knowledge, and if called as a witness, I could and would testify competently to the matters stated herein.
2. **The 801 Anti-SLAPP MPA.** Attached as Exhibit 801-A to the accompanying Supplemental Request for Judicial Notice (filing item 04) is a true and correct copy of the Memorandum of Points and Authorities in Support of Defendants' Special Motion to Strike under Code of Civil Procedure section 425.16, filed in CGC-25-631801 on April 9, 2026 (the "801 Anti-SLAPP MPA"). The lodged copy matches the version served on Plaintiff by Porter Scott, P.C., on April 9, 2026.
3. **The 801 Demurrer MPA.** Attached as Exhibit 801-B is a true and correct copy of the Memorandum of Points and Authorities in Support of Defendants' Demurrer to the First Amended Complaint, filed in CGC-25-631801 on April 13, 2026 (the "801 Demurrer MPA"). The lodged copy matches the version served on Plaintiff by Porter Scott, P.C., on April 13, 2026.
4. **The 801 Anti-SLAPP Reply.** Attached as Exhibit 801-C is a true and correct copy of the Reply to Plaintiff's Opposition to Defendants' Special Motion to Strike, filed in CGC-25-631801 on May 5, 2026 (the "801 Anti-SLAPP Reply"). The lodged copy matches the version served on Plaintiff by Porter Scott, P.C., on May 5, 2026.
5. **The May 12, 2026 Department 301 Minute Order.** Attached as Exhibit 801-D is a true and

1 correct copy of the minute order of Department 301 entered May 12, 2026, granting the 801
2 special motion to strike under Code of Civil Procedure section 425.16, as entered on the public
3 docket of CGC-25-631801. If the official PDF minute order from the San Francisco Superior
4 Court portal is required for chambers lodging, Plaintiff will substitute that official PDF before
5 chambers delivery; the official minute order is the same document referenced as the May 12
6 Order in this Department's May 13, 2026 minute order continuing the consolidated motion
7 calendar to June 24, 2026.

8 **6. Same counsel and same firm in both cases.** The 801 Anti-SLAPP MPA, the 801 Demurrer
9 MPA, and the 801 Anti-SLAPP Reply are signed for the moving defendants by Porter Scott,
10 A Professional Corporation, with signature blocks identifying Chad S. Tapp (SBN 214898)
11 and Tyler J. O'Connell (SBN 346673) as counsel of record. The same firm, same letterhead
12 (2180 Harvard Street, Suite 500, Sacramento, California 95815), and same telephone and
13 fax numbers appear on the operative defense papers in CGC-25-631802 in this Department,
14 including the 802 Anti-SLAPP MPA (April 9, 2026), the 802 Demurrer MPA (April 13,
15 2026), the 802 motion to strike under section 436 (April 22, 2026), and the 802 Anti-SLAPP
16 Reply (May 5/6, 2026).

17 **7. Same evidentiary nucleus.** Both cases concern the same insured (Subhi Abdelhalim), the
18 same incident date (February 4, 2021), the same denial letter (February 25, 2021), and the
19 same physical evidentiary nucleus, namely the 911 audio, the body-worn camera footage, and
20 the computer aided dispatch records (the "silent-witness materials"). The 801 papers and the
21 802 papers cite to the same items.

22 **8. Privity and CSAA's joinder in the 801 motion.** CSAA Insurance Exchange was a moving
23 defendant on the 801 special motion to strike that produced the May 12 Order. CSAA-funded
24 defense counsel, including Carbone, Smith & Koyama, LLP, Michael R. Chambers (SBN
25 132394), Phillips, Spallas and Angstadt, LLP, Priya D. Navaratnasingham (SBN 252686),
26 and Alberto Reyna (SBN 347323), were the moving defendants whose conduct CSAA's brief
27 sought to immunize as defense-team litigation conduct. The privity, counsel-identity, and
28 same-nucleus showing is set forth in the accompanying Verified Statement of Privity, filing

1 item 08.

2 9. **Defense's own reliance on the parent appeal.** The 802 defense papers themselves rely on
3 the parent appeal *Rosario v. Abdelhalim*, Court of Appeal Case No. A173827, including in the
4 802 Anti-SLAPP MPA at p. 1 footnote 1 and p. 2 footnote 3, and in the 802 Demurrer MPA
5 at p. 2 footnote 2. That reliance confirms the defense's own treatment of the three matters
6 (CGC-21-594102; CGC-25-631801; CGC-25-631802) and the pending appeal A173827 as
7 related proceedings for purposes of position-taking.

8 10. **Limited evidentiary purpose.** The exhibits to the accompanying Supplemental Request
9 for Judicial Notice are tendered for the limited purpose of establishing the existence, filing,
10 contents, and legal effect of the noticed 801 records. They are not tendered for the truth
11 of any disputed factual recital inside those records. The Court's judicial-notice ruling, if
12 granted, will support the cross-case judicial estoppel framework set forth in the accompanying
13 memorandum without requiring the Court to resolve any disputed merits question in 801 or
14 in 802.

15 11. **No relief from another department.** I do not, by this declaration, ask Department 302 to
16 revisit, vacate, or reconsider the May 12 Order entered in Department 301. I ask only that
17 Department 302 take judicial notice of the noticed 801 records and apply judicial estoppel in
18 this Department to bar CSAA from advancing positions inconsistent with its 801 victory at
19 the June 24, 2026 hearing on the 802 anti-SLAPP, demurrer, and section 436 motions.

20 I declare under penalty of perjury under the laws of the State of California that the foregoing is
21 true and correct.

